No. E2019-02236-CCA-R3-CD

IN THE COURT OF CRIMINAL APPEALS OF TENNESSEE AT KNOXVILLE

STATE OF TENNESSEE,
Plaintiff/Appellee,

v.

CHRISTOPHER BASSETT, Jr.,
Defendant/Appellant.

Appeal from a Jury Verdict of the Criminal Court for Knox County,
Docket No. 110855

MOTION FOR LEAVE FOR AMERICAN CIVIL LIBERTIES UNION AND AMERICAN CIVIL LIBERTIES UNION OF TENNESSEE TO FILE BRIEF AS AMICI CURIAE

Thomas H. Castelli
BPR No. 24849
Stella Yarbrough
BPR No. 33673
AMERICAN CIVIL LIBERTIES UNION FOUNDATION OF TENNESSEE
P.O. Box 120160
Nashville, TN 37211
(615) 320-7142
tcastelli@aclu-tn.org
syarbrough@aclu-tn.org

Emerson Sykes (pro hac vice pending)
Vera Eidelman (pro hac vice pending)
Arianna Demas (pro hac vice pending)
AMERICAN CIVIL LIBERTIES UNION FOUNDATION
125 Broad Street, 18th Floor
New York, NY 10004
(212) 549-2500
esykes@aclu.org
veidelman@aclu.org
ademas@aclu.org

The undersigned counsel, pursuant to Tenn. R. App. P. 31, move this Court for leave to file a brief in this action as Amici Curiae. As grounds for this Motion, ACLU and ACLU-TN show this Court as follows:

1. The ACLU is a nationwide, nonprofit, nonpartisan organization dedicated to defending the principles embodied in the Constitution and our nation's civil rights laws. The ACLU-TN is the Tennessee affiliate of the ACLU. Since its founding in 1920, ACLU has been deeply committed to defending the rights of the criminally accused and protecting the right to freedom of speech and association enshrined in the First Amendment to the United States Constitution. Founded in 1968, ACLU-TN is similarly dedicated to the principles of liberty and equality embodied in the United States Constitution and the Tennessee Constitution.

2. The above-styled case and controversy squarely implicate ACLU's and ACLU-TN's concerns with the violation of the free speech and free association rights. This case involves evolving First Amendment jurisprudence against the introduction of protected speech – here, a rap music video – into evidence at trial where that evidence has no relevance to any issue being decided by the court or jury.

3. ACLU and ACLU-TN believe their amicus brief will aid the Court in making its determination in this case. Both organizations regularly participate in both state and federal courts in cases involving the First Amendment right to freedom of speech through direct representation and amicus briefs. *See, e.g.*, *Weidlich v. Rung*, 2017 WL

4862068 (Tenn. Ct. App. 2017) (direct representation); *Young v. Giles Cty. Bd. of Educ.*, 181 F. Supp. 3d 459 (M.D. Tenn. 2015) (direct representation); *Reno v. ACLU*, 521 U.S. 844 (1997) (direct representation); *Matal v. Tam*, 137 S. Ct. 1744 (2017) (amicus).

4. This case has profound ramifications that reach far beyond the evidentiary ruling at issue that threaten the right to freedom of artistic expression and association. The proffered amicus brief provides an analysis of relevant case law and takes the position that the trial court violated Defendant's First Amendment Rights to speech and association by admitting the rap music video into evidence.

5. ACLU-TN and ACLU submit with this motion their proposed amici curiae brief.

Dated: November 5th, 2020

Respectfully submitted,

/s/ Thomas H. Castelli
Thomas H. Castelli
BPR No. 24849
Counsel for Amicus Curiae

CERTIFICATE OF SERVICE

I hereby certify that on November 5th, 2020, I served a true and exact copy of the foregoing document via the Court's e-file system upon the following Counsel of Record:

Attorneys for Defendant: T. Scott Jones, Gena Lewis, BANKS AND JONES, 2125 Middlebrook Pike, Knoxville, TN 37921

Attorney for State: Nicholas Spangler, OFFICE OF THE ATTORNEY GENERAL, P.O. Box 20207, Nashville, TN 37202; Knox County District Attorney General's Office, 400 W. Main Ave., Knoxville, TN 37901

November 5th, 2020

/s/ Thomas H. Castelli
Thomas H. Castelli